

M/s.

Sub: Quotation for your

Dear Sir,

Thank you for the opportunity to submit our quotation. Based on the details shared, we are pleased to present our offer for the supply of readymixed concrete as per the specifications provided.

Please find below the detailed rates and commercial terms for your evaluation.

1.	Quantity	:	
2.	Project Location	:	
3.	Delivery Schedule	:	As per mutually agreed schedule
4.	Grade and Rate	:	
		:	<i>Note: 28 days characteristic strength. Prices include GST [18%].</i>
5.	Part Load	:	Extra charge @ Rs. 400/- per cum
6.	Terms of Payment	:	100% Advance
7.	Validity	:	7 days
8.	Conditions of Sale	:	In accordance with "Annexure 1" enclosed

We trust that our proposal aligns with your project requirements. Should you need any clarifications or require adjustments to the quantities, grades, or delivery schedule, we will be pleased to assist.

We look forward to receiving your confirmation and to supporting you throughout the execution of your project.

Thanking you and assuring you of our best services at all times.

Yours sincerely,

For

KARTHIKEYAN G

9809 12 9809

ISO CERTIFIED

McubeRMX/JF/250916

www.mcubermx.in



CONDITIONS OF SALE

1. Basis of Quotation: These conditions of sale ("Conditions of Sale") form an integral part of the quotation ("Quotation") and govern the sale and supply of readymixed concrete (hereinafter referred to as "Product"/"Concrete") by Mcube Readymix Pvt Ltd (hereinafter referred to as "Mcube RMX"). The Quotation is a standing offer by MCUBE RMX, to the entity/person stated in the Quotation ("Customer"), to sell the product described in the Quotation within 15 days after the date of the Quotation.

2. Time Limit: MCUBE RMX reserves the right to review and reject order for the Product, received after a period of 15 days from the date of the Quotation.

3. Access for delivery/Delivery: The Customer shall indicate and provide MCUBE RMX a safe and proper route from the highway/public road to the Customer's discharge point to enable MCUBE RMX to complete the delivery within the agreed time. The Customer shall indemnify MCUBE RMX and any person acting under or on behalf of MCUBE RMX for the delivery of the Product, against any cost, damage or loss suffered by MCUBE RMX resulting from the Customer's failure to provide MCUBE RMX a safe and proper route from the highway/public road to the Customer's discharge point. Customer's covenants: (i) MCUBE RMX shall not deliver the Product during traffic restriction hours imposed by the government/traffic control authorities from time to time. (ii) In accordance with requirements of IS 4926 the customer should plan his arrangements so as to enable a full load of concrete to be discharged within 30 minutes of arrival at site. (iii) In case of excess requirement than the order quantity of the Product, an additional amount for each grade of the Product as specified by MCUBE RMX in the Quotation shall be payable by the Customer.

4. Safety: The Customer shall adhere to all the standard safety requirements at the site where the Product is required to be delivered and in the event there are unsafe conditions, MCUBE RMX reserves the right to abandon the delivery of the Product unless the conditions are corrected. In case of any mishap happening due to the inadequately designed and erected form work/false work, MCUBE RMX shall not be made liable in any manner whatsoever. The customer shall keep MCUBE RMX indemnified in respect of any loss that it may incur owing to the breach of the above covenant.

5. Delivery dockets or Challans: In respect of each delivery, the Customer shall ensure that an authorized person on site signs the delivery docket (challan) which inter alia states the following confirmations and acknowledgements of the Customer: (i) An acknowledgement from the Customer that the mix description and the volume set out on such delivery docket (challan), confirming that the workability of the concrete comply with the Customer's requirement stated in its purchase order. (ii) An authorization in favour of MCUBE RMX for the addition to the Concrete of water, chemical admixture or of other materials as directed by the customer; MCUBE RMX shall not be responsible for the slump, the strength or quality of the concrete after any such addition on site by or at the request of the customer. (iii) A confirmation on the time of the arrival of the trucks at the Customer's site and of completion of discharge of the Product at the Customer's site. (iv) An acknowledgement of the receipt of the delivery of the Product.

6. Modification of Description: Where MCUBE RMX complies with a request from the Customer or from a person reasonably believed by MCUBE RMX to be acting on behalf of the Customer for a modification in the Product, the Customer shall accept any consequential modification in the properties and/or the constituents of the Product.

7. Strength, concrete, testing, etc.: (i) The testing of concrete shall be carried out as per the relevant Indian standards at MCUBE RMX's laboratory. (ii) Acceptance of quality of concrete shall be based on achievement of compressive

strength of concrete demonstrated by standard samples cast, cured and tested by MCUBE RMX technicians as per Indian Standard IS 516. Customer shall ensure proper compaction and curing of concrete for their samples and in-situ concrete for attaining potential strength. Further, for preventing cracks, customer shall take all necessary care in the design, construction and workmanship, including early age curing of placed concrete. MCUBE RMX shall not be held responsible for any cracks in hardened concrete and leakage of water through slab or other structures. (iii) As per provisions of IS 4926 clause 5.1.2, concrete mixes supplied by MCUBE RMX are designed for one cubic meter volume of compacted fresh concrete quantity. MCUBE RMX carries out yield check at its plant every day. Following customer's request MCUBE RMX can demonstrate this in batching plant of MCUBE RMX by conducting yield check by MCUBE RMX's trained concrete technician. Assessment of volume by site measurement of placed concrete or $L \times B \times D$ measurement from drawing is not acceptable. (iv) MCUBE RMX is responsible only for 28 days compressive strength (or earlier day's strength if agreed upon) provided the mixes are designed by MCUBE RMX and the cubes are cast and tested by MCUBE RMX's technicians. MCUBE RMX is not responsible for the properties of concrete in case of prescribed mixture. (v) In case the customer has prescribed the mix proportions and/or any specific raw materials, MCUBE RMX shall not be responsible for plastic and hardened properties of concrete, including but not limited to fresh volume of concrete and its compressive strength.

8. Express Terms: The customer shall be assured for only the strength and performance of the concrete as mentioned in the "Mix Title" on the face of the quotation. The customer shall not be entitled to expect any additional feature or performance based on the past performance of the similar Mix Title unless clearly mentioned on the face of quotation.

9. Breach of Contract: If either MCUBE RMX or Customer fails to perform its obligations under the Conditions of Sale ("Defaulting Party"), such Party shall be deemed to have breached the Conditions of Sale. The other Party ("Non-Defaulting Party") shall, in addition to the right to claim damages from the Defaulting Party, have the right to terminate this Quotation. The Defaulting Party shall compensate the Non-Defaulting Party for any damages directly suffered by the Non-Defaulting Party on account of such breach. The above mentioned remedies shall be without prejudice to the right of the Non-Defaulting Party to obtain an injunction restraining any breach or apprehended breach in accordance with these Conditions of Sale. In case the Customer, being the Non-Defaulting Party, makes a claim against MCUBE RMX for any breach of these Conditions of Sale or in relation to any alleged failure of the concrete to match the specifications stated in the purchase order, then the Customer shall: (i) establish the occurrence of the breach; (ii) give MCUBE RMX a written notice of such claim stating the reasons for suspecting a breach and the precise state in which the Product in question was kept by the Customer at its site; the notice shall be given within 40 days after the delivery of the Product; (iii) in the case of the Customer's claim of the quantity of the Product delivered at the Customer's site failing to correspond to the quantity stated in the delivery docket (challan), such claim shall be submitted by the Customer within 7 days after the delivery of the Product and no claim shall be entertained based on length $\times$ breadth $\times$ depth measurement; (iv) upon request from MCUBE RMX, permit MCUBE RMX to carry out its own assessments as quickly as is reasonably practicable, in order to inspect, to sample and to test the Product in question at the Customer's site and to investigate and advise on any remedial action; (v) obtain MCUBE RMX's concurrence for any third-party testing of concrete supplied by them; and (vi) in case of doubt on the quality of the concrete, not unilaterally come to conclusion on the non-destructive testing and core testing of concrete without written permission from MCUBE RMX.

10. Limitation of Liability: (i) MCUBE RMX warrants that the Products supplied are in accordance with the specifications agreed upon between the parties. MCUBE RMX shall have no control and shall not be responsible for any other ingredients mixed with these Products or the final application of the same by the Customer. (ii) MCUBE RMX's liability in respect of any breach shall be limited to the repair of the concrete in question by MCUBE RMX. (iii) MCUBE RMX shall not be liable for any indirect, special, incidental or consequential damages or loss in relation to any breach. (iv) In no case shall MCUBE RMX's liability exceed the purchase price of the Product paid by the Customer.

11. Ownership of Concrete: The ownership of the Product shall pass to the Customer at the moment either of (i) its discharge from the truck making its delivery at the Customer's site or (ii) its discharge from MCUBE RMX's plant into any container provided by the Customer.

12. Credit: Any credit facility allowed to the Customer by MCUBE RMX may be altered or withdrawn at any time. Offer for credit is at the sole discretion of the management of MCUBE RMX.

13. Suspension of Delivery: In case the Customer defaults in paying any sum due to MCUBE RMX, MCUBE RMX shall have the right to suspend all further deliveries until such default be made good. Further, MCUBE RMX shall have the right to cancel any order so far as any Product remains to be delivered thereunder.

14. Quantity: This quotation is based on the sale of the approximate quantity of the Product which the customer has informed MCUBE RMX in its purchase order. In case the ordered quantity is not accepted/received or taken delivery of by the customer, MCUBE RMX reserves the right to charge for the deficient quantity.

15. Waiver of Terms: These terms & conditions are final and request for waiving any condition by customer shall not be entertained.

16. Conflicting terms: Any other terms or conditions which the Customer may seek to introduce (whether before or after the date of this quotation) shall be of no effect and an order or an acceptance by the Customer of a delivery to which this Quotation refers shall be deemed to be on these Conditions of Sale and not otherwise.

17. Supply only: MCUBE RMX contracts as suppliers only and MCUBE RMX shall not be bound by nor shall MCUBE RMX be imputed with any knowledge of any contract between the Customer and any other party.

18. Force Majeure: If the performance by either party to these Conditions of Sale of any of its obligations hereunder is prevented, restricted or interfered with by reason of an event beyond the reasonable control of the performing party (each, a "Force Majeure Event"), such as but not limited to: (i) acts of God or other natural calamity; (ii) fire, explosion or other accidents; (iii) theft or burglary; (iv) strikes or labour disputes; (v) acts of war, including use of military force, guerrilla warfare or armed attack (whether an actual declaration thereof has been made or not), terrorism, riots, civil disturbance, rebellions or revolutions, vandalism, acts of internal aggression, arson, armed conflict or other violence; (vi) any change of any laws, by-laws, policies, guidelines, rules or regulations of the governments; (vii) any action or inaction of any government authority or its lawful representative; (viii) infrastructure failure, power break-downs, telecommunication break-downs, disruptions in internet connectivity, software and hardware crashes; (ix) epidemics, insurrections, transportation embargoes, shortages of supplies or raw materials/components/finished goods, viruses, embargoes/orders (whether or not such later prove to be invalid), then such party shall be excused for such non-performance. Provided, however, that such party should notify the other party within a period of 15 days from the date of the occurrence of the Force Majeure Event, describing in detail the nature of the Force Majeure Event, including a description, in reasonable specificity, of the cause of the Force Majeure Event. Further, the notifying party must in the meantime continue to perform its other obligations under this Agreement that remain unaffected by the Force Majeure Event (if any) to the extent reasonably practicable.

19. Governing Law and Jurisdiction of Courts: These Conditions of Sale, including the construction, validity and performance hereof and the rights and obligations of the parties hereunder, and all amendments hereof, shall be construed in accordance with and governed by the laws of India without giving effect to any conflicts of law provisions or rule that would cause the application of the laws of any other jurisdiction. The Courts at Chennai shall have exclusive jurisdiction on all matters arising out of these Conditions of Sale.